

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN NIGERIA

Complete Community Opposition How-To

This guide uses the Nigerian terms and bodies you'll actually run into — the EIA, NESREA and the sector regulators, the domesticated African Charter right, the courts, and the foreign-parent lawsuits in London and The Hague — and explains each in plain words the first time. Nigeria can be lethal for those who resist, and this guide treats your safety as paramount throughout.

INTRODUCTION & FRAMEWORK

Hold onto one fact before anything else: **an oil-belt community in Nigeria, through mass nonviolent mobilisation, forced one of the largest oil companies in the world to stop producing on their land.**

That is the record of the **Ogoni** people of the Niger Delta. After decades of extraction that spilled and flared across their land, Ogoni leaders — including the writer **Ken Saro-Wiwa** — founded the **Movement for the Survival of the Ogoni People (MOSOP)** in 1990 and published the **Ogoni Bill of Rights**, asserting the right to a clean environment, a fair share of the wealth taken from their soil, and control over their own resources. Committed to nonviolence, MOSOP organised on a scale rarely seen: **on Ogoni Day, 3 January 1993, it mobilised some three hundred thousand people — more than half the entire Ogoni population — to march peacefully against Shell.** By mid-1993 the Ogoni had pushed Shell out of Ogoniland, where the company has not produced oil since. A community had made a global oil giant leave. That is real power, and it is Nigerian.

Now the second truth, and it must be told plainly, because it is the reason safety runs through every page of this guide. **The victory came at a terrible cost, and the system turned lethal.** As the movement grew, the military government answered with force. In 1994, after the killing of four Ogoni chiefs, Ken Saro-Wiwa and eight other MOSOP leaders — the **Ogoni Nine** — were arrested and tried before a tribunal international observers condemned as a travesty. **On 10 November 1995 they were hanged.** The wider crackdown burned villages and killed many. Years later, a **United Nations assessment of Ogoniland** documented pollution so severe that a clean-up would take decades, and a remediation project backed by a roughly one-billion-dollar fund was launched — a project civil society has since criticised for delay and opacity. The Ogoni struggle, in the communities' own words, remains **unfinished.**

Nigeria thus shows both the extraordinary power of an organised, nonviolent community and the gravest possible warning about the risks of resistance where the state and the companies close ranks. This guide holds both truths at once. It gives you real legal and political levers — but its first instruction, always, is to protect the people who carry the fight.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals and dependencies, and a chain breaks at its weakest link. A large Nigerian project needs its **EIA** approved (through the environment ministry and **NESREA**, or the petroleum regulator for oil); it must respect the **fundamental rights** the courts have used to strike at environmental harm; its foreign parent is now **suable in London and The Hague**; and it depends on financing and social peace. Every one of those is a link you can grab. **Find the one closest to your**

hand and pull — and protect your people while you do.

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation — safety first:

- **If the EIA was skipped or is defective, that's a real ground** — the law requires assessment and participation.
- **If a fundamental right is being violated, the courts have used the domesticated African Charter right to declare environmental harm (like gas flaring) unlawful.**
- **If a global company is behind it, its foreign parent can now be sued in London and The Hague** — a powerful external lever.
- **Where the domestic system fails, mass nonviolent mobilisation and international attention are what expelled Shell** — but they carry real, sometimes lethal, risk, so weigh every step for safety.

Read the whole guide once before you move. Two habits run through it: **use the levers the law and the world give you** — the EIA, the rights case, the foreign-parent lawsuits, international attention — and **run every front at once, with hard-won care for safety**: the documents, the courts, the foreign parent, the movement, the press. That's how Ogoni changed the world's conversation — at a cost that must never be forgotten.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching — and where the danger lies.

Who Actually Decides

For most projects, the **EIA** is assessed by the **Federal Ministry of Environment**, with **NESREA** (the National Environmental Standards and Regulations Enforcement Agency) enforcing environmental law — though, importantly, **NESREA's writ historically excluded the oil and gas sector**, which is regulated separately by the petroleum authorities (now the upstream regulator, the NUPRC). **State governments** have their own environmental agencies. And the **courts** enforce fundamental rights. Know which body holds your decision — and, for oil, know it sits with the petroleum regulator.

How a Project Moves — and Where You Jump In

The EIA and participation. A significant project requires an EIA, with public participation. *Your opening* — and it arms every later step: take part, put your objections on the record, and insist the participation genuinely happened (a participation that never truly reached the community is a defect).

The approvals and permits. The ministry or petroleum regulator approves; permits follow. *Your opening*: a project approved on a defective EIA, or a right violated, can be challenged.

Construction and operation. *Your opening*: the ongoing harm — spills, flaring — and breaches, litigable at home and, against the foreign parent, abroad.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — and crucially, **the foreign parent**, now suable in its home courts. **What it still needs** — the EIA not approved, permits not granted, financing not closed: whatever's missing is the soft spot. **Who's paying and insuring it** — international financiers and insurers

with their own environmental and human-rights standards.

Who's Supposed to Be Watching

Each is an ally or an arena. The **environment ministry and NESREA** run environmental enforcement (outside oil); the **petroleum regulator** oversees oil and gas. The **courts** enforce fundamental rights — the gas-flaring route. The **National Human Rights Commission** investigates violations, including against defenders. **Foreign courts** in London and The Hague now hold the parent companies to account. And Nigeria's **communities, its civil society, its churches and traditional institutions, and a vigorous press** — together with international networks — are the forces that reach furthest, as Ogoni showed.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether the EIA was skipped, whether a fundamental right is engaged, whether a suable foreign parent is behind it, and — always — how much danger resistance carries.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents (safely)	5–10%	weeks	low	The base for everything else
Participation / objections in the EIA	15–35%	during assessment	low	On record; conditions or a redo
Fundamental-rights case (Charter right)	25–50%	1–4 yr	low–mod	Harm declared unlawful (gas flaring)
Suit against the foreign parent (London/Hague)	25–50%	years	low locally	Liability; settlement; pressure
National Human Rights Commission	15–40%	months–yr	low	Findings; pressure; protection
Mass nonviolent mobilisation	25–55%	months–yr	low but risky	State/company retreat (Ogoni) — with grave risk
International attention	25–50%	months–yr	low	Reputational and financial pressure
Everything together (rights + foreign parent + world watching)	35–60%	1–5 yr	low–mod	Halted, declared unlawful, delayed, exposed
Everything together (state+company closed ranks)	15–40%	years	low–mod, high risk	Delayed, exposed — protect people above all

The levers that move the needle most are the **fundamental-rights case**, the **foreign-parent lawsuits**, and **mass mobilisation with international attention** — the last powerful but dangerous. Ogoni shows the ceiling (an oil giant expelled) and the gravest warning (leaders executed). So weigh every step for safety, and count a declared-unlawful harm, a foreign settlement, delay, and exposure as wins.

On cost and safety: documenting and organising are cheap, and international legal networks and NGOs bring the foreign-parent cases. But this is among the most dangerous contexts in this guide — defenders have been killed. Protect the vulnerable, document safely, avoid exposing individuals, and route risk through lawyers, the Human Rights

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this EIA, this right, this parent company — is strong. Answer five questions in writing, safely.

1. What is it, and who's behind it — and who is the foreign parent? Name the project, the operator, its owners, and crucially the multinational parent that may be suable abroad.

2. Where is it, and what does it touch? Get the footprint and lay it over creeks and rivers, farmland and fisheries, forest, communities, and the harms it brings — spills, flaring, pollution. **Contamination of water and farmland, and gas flaring, are your sharpest legal levers**, so map them carefully.

3. What stage is it at, and what's the next deadline? Is an EIA in participation? Has it been approved? Is harm ongoing (opening a rights case)? These openings are time-bound.

4. What does it still need that it lacks? An EIA not approved, permits not granted, financing not closed. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? Neighbouring communities, fishers and farmers, civil society, churches, and — carefully — traditional authorities. Ogoni united a whole people.

What this looks like in real life. A community learns an oil operation is spilling into its creeks and flaring over its farms, run by a subsidiary of a global company. The five questions yield: a foreign parent behind it (suable abroad); water and farmland contaminated and gas flared (the rights levers); an ongoing harm; a project depending on international finance; and a coalition of fishers, farmers, and civil society. That's the Delta pattern — build the rights case and the foreign-parent suit, and protect your people.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — but in Nigeria, gather it **safely**, without exposing individuals to danger. Build it in three layers.

Layer one: the paper trail. Get the documents the decisions rest on — the EIA, the approvals and conditions, the permits, the spill and flaring records. Use access-to-information rights where you safely can. Then read the EIA hard for flaws — an understated impact, an ignored alternative, a participation that never genuinely happened.

Layer two: the ground truth. Dated, located photographs and video of the harm — the spills, the flares, the contaminated water and farmland — baseline evidence most of all, gathered so no one is put at risk. The UN Ogoniland assessment shows how powerful independent scientific documentation of contamination can be.

Layer three: the map of harm and rights. Lay the project over the creeks, farmland, and fisheries it harms, so each lever — contamination, flaring — is visible. This evidence feeds both the domestic rights case and the foreign-parent lawsuit.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The EIA, the approvals and conditions, the permits, the spill and flaring records** — from the ministry, NESREA, or the petroleum regulator; use access-to-information where safe (8A).

- **Independent scientific evidence of contamination** — from universities, NGOs, and international scientists (the UN Ogoniland model).
- **Ownership and the foreign parent** — corporate records tracing the operator to its multinational parent.
- **The harm-and-rights map** — creeks, farmland, and fisheries harmed by spills and flaring, laid over the site.
- **Dated evidence, gathered safely** — photographs marked with date and place, without exposing individuals.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Ogoni's nonviolent mass unity is the most powerful example in this guide. But build it **safely**, because the danger is real. Four moves.

Start with a tight, trusted core. The people most affected, those who know the creeks and land, a few tireless organisers, and respected community and faith leaders — people you trust, because security matters.

Commit to nonviolence, in writing. MOSOP's discipline and its written Ogoni Bill of Rights gave it a moral clarity no corporate PR could erase. A clear, nonviolent, written charter of demands is both a strategy and a protection.

Bring in the lawyers and international allies — early. Reach the Nigerian public-interest lawyers who run rights cases, and the international legal networks and NGOs that bring the London and Hague suits and the scientific documentation. International allies are also a measure of protection.

Build to last — and protect people above all. Nigerian fights run for years and can turn lethal. Build clear roles, a secure shared archive, careful communications, a way to decide together, and a serious plan for physical safety. Take every threat seriously, avoid exposing individuals, keep the movement nonviolent and disciplined, and route danger through lawyers, the Human Rights Commission, and international networks. Your people's lives come before any project.

STEP 4: LEGAL CHALLENGES, RIGHTS & THE FOREIGN PARENT

Law is a real Nigerian lever — and, uniquely, it now reaches into the courts of the companies' home countries.

Participate First — It Builds the Record

Everything downstream is stronger if you took part in the EIA and put your objections on the record. The courts weigh that record, so your objections are the foundation of the challenge.

The Fundamental-Rights Case and the Charter

Nigeria has domesticated the **African Charter on Human and Peoples' Rights**, whose right to a **general satisfactory environment**, together with the constitutional rights to **life and dignity**, has been used by the courts to strike at environmental harm — most famously in a case that declared **gas flaring unlawful** as a violation of the rights to life and dignity. A **fundamental-rights enforcement** action is a real route where a project violates these rights. Frame the harm — the contamination, the flaring — as a rights violation.

Suing the Foreign Parent — London and The Hague

This is Nigeria's most powerful recent development. Courts abroad now hold multinational **parent companies** accountable for their Nigerian operations: the **UK Supreme Court** has allowed Nigerian communities to sue an oil major's parent in **London** over Delta pollution, and a **Dutch court** has held a parent and its Nigerian subsidiary liable in **The Hague**. Where a global company is behind your project, its home courts are a lever its Nigerian subsidiary cannot shield it from — and international legal networks bring these cases.

The Honest Limits

Straight talk: the rights case and the foreign-parent suits are real and powerful, but domestic litigation is slow and enforcement weak, the state and companies can close ranks, and — the gravest limit — resistance can be lethal. So use the strong tools — the EIA, the rights case, the foreign-parent lawsuits, the Human Rights Commission — but pair them with international attention, protect your people above everything, and count a harm declared unlawful, a foreign settlement or judgment, delay, and exposure as wins alongside a clean stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it — safely.

Harm becomes a rights violation. Not "the pollution is bad" but *"the spills and flaring destroy our water, our farms, our health — a violation of our rights to a satisfactory environment, life, and dignity, as the courts found with gas flaring."*

A parent becomes a defendant abroad. *"The multinational behind this operation can be sued in London / The Hague for the harm here."*

Contamination becomes independent science. *"Independent assessment documents contamination beyond safe limits — as the UN found in Ogoniland."*

The harm becomes a global story. *"The creeks, the farms, the health of our people — poisoned, while the world watches."*

Match it to the venue: the objections to the EIA; the rights violation to the fundamental-rights case; the parent to the foreign courts; the harm to the Human Rights Commission and the world's press.

STEP 5: MEDIA STRATEGY

In Nigeria, international attention is a real lever — and, where defenders are at risk, a measure of protection. Ken Saro-Wiwa carried Ogoni to the world; that global witness is part of the story's power. A vigorous press and international networks make the media front central, handled with great care.

Lead with people and place, not procedure. Not "the EIA was deficient" but "the creeks, the farms, the health of our people — poisoned, while the world watches." Use your strongest material: dated evidence of spills and flaring, independent contamination science, and — carefully — human voices, without exposing anyone to danger.

Work several audiences at once — reach the world. Local and national press build domestic pressure; international media and networks reach the foreign parent's investors and home public, and help protect people. Make it easy: captioned evidence, accurate summaries, a map, strong voices — and let the community decide what is said and by whom.

Two hard rules. Accuracy above all — one exaggeration can be used against you. And protect people above everything — weigh every public act for safety.

EMAILS & LETTERS

Make them your own; keep them factual and calm; keep copies safely; and protect anyone at risk.

8A — Request for the EIA and records (to the ministry / regulator).

Subject: Request for the EIA and approvals — [project].

"We, residents of [place], request the EIA, the approvals and conditions, the permits, and the spill and flaring records for [project] at [location]. [Contact.]"

8B — Objection in the EIA.

Subject: Objection — EIA for [project].

"We, residents of [place], object to [project]: [it contaminates our water and farmland; it flares gas over our homes; the participation never reached us]. We ask that approval be refused or a genuine assessment required. [Attach evidence.]"

8C — Fundamental-rights case (to a lawyer).

Subject: Fundamental-rights enforcement — [project].

"We instruct you to bring a fundamental-rights action because [project]'s [spills / gas flaring] violate our rights to a satisfactory environment, life, and dignity, as the courts found with gas flaring. [Attach evidence.]"

8D — To an international legal network (foreign-parent suit).

Subject: Possible claim against [parent company] abroad — [project].

"Our community faces harm from [project], operated by a subsidiary of [multinational parent]. We've gathered [contamination evidence, corporate records] and understand parents can now be sued in London / The Hague. We ask for your help, as partners. [Contact and evidence summary.]"

8E — To the National Human Rights Commission.

Subject: Complaint — [project] and threats to our community.

"We report that [project] [violates our environmental and life rights], and that [any threats to community members]. We ask you to investigate and help protect those at risk. [Attach evidence.]"

8F — To an international financier or insurer.

Subject: Environmental, rights, and legal risk in [project].

"We understand your institution may be [financing / insuring] [project] at [location], which [contaminates our water / flares gas] and faces litigation here and against its parent abroad. We ask you to weigh this against your own standards. [Contact and evidence summary.]"

8G — Letter to the international press.

Subject: [Community] moves to protect [creeks / farmland / health] from [project].

"For generations the people of [place] have fished and farmed [the creeks / land] at [location]. Now [project], operated by [company], poisons it. We can provide dated evidence, contamination science, a map — and, carefully, interviews. [Contact.]"

8H — Rallying the community (safely, nonviolently).

Subject: We can protect our land and water — here's how, and safely.

"[Project] threatens [our creeks / farmland / health]. The Ogoni, through disciplined nonviolence, made an oil giant leave their land — at great cost we honour. With the rights case, the foreign-parent suit, international attention, and our unity behind us, we have a real chance. Please join us — nonviolently, protecting one another above all. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order — and safely:

1. **Nail down the project, its footprint, and its foreign parent.** Contamination, flaring, and a suable parent are your sharpest levers.
2. **Take part in the EIA and object (8B); put your objections on the record.**
3. **Gather dated evidence of the harm, safely, and seek independent contamination science.**
4. **Build the fundamental-rights case on the harm (8C) with a lawyer.**
5. **Reach an international legal network about suing the foreign parent abroad (8D).**
6. **Carry it to the world, involve the Human Rights Commission, and organise nonviolently (8E/8G/8H) — protecting people above all.**

Even lean, those six use the law and the world's leverage, build the record, and — first and last — keep your people safe.

WHEN THE SYSTEM IS TILTED

Nigeria's tools are real, but the field is heavily tilted, and you must plan for it — with safety first.

When the state and company close ranks. This is the gravest tilt, and Ogoni is the warning. Don't escalate blindly: use the rights case, the foreign-parent suit, and international attention, keep the movement nonviolent and disciplined, and protect your people above everything.

When domestic enforcement is weak. A court win or a permit condition can be ignored. Pair it with the foreign-parent lawsuits, the Human Rights Commission, and sustained international pressure to make it bite.

When oil is exempt from NESREA. For oil and gas, the regulator is the petroleum authority, not NESREA — aim your challenges there, and lean on the rights case and the foreign courts.

When defenders are threatened. Take every threat with deadly seriousness. Protect the vulnerable, avoid exposing individuals, work through lawyers and international networks, and let global attention be a shield.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Nigeria has severe, documented problems with the capture of the oil sector and its regulation, so this matters — approach it with great care.

How to spot it. Approvals against the evidence; an EIA written for the operator; participation engineered to exclude; permits or contracts steered to the connected; benefits to a few while the community carries the harm.

Who's supposed to guard against it. The **EFCC** and **ICPC** investigate graft. The **Auditor-General** examines public money. The **National Human Rights Commission** takes rights complaints. **Foreign courts and regulators** reach the parent companies. And Nigeria's **investigative press and international networks** have exposed captured oil operations.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Do not make public accusations you can't back; in this context they can be dangerous. Route serious evidence to the proper bodies, international networks, and trusted journalists, protect insiders and witnesses above all, and pair the exposure with the legal and international campaign.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together, safely. The documents build your proof; pinning down the rights levers and the foreign parent aims it; disciplined nonviolent organising builds the muscle; the rights case and the foreign-parent suit press it; international attention raises the cost and protects your people. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, its footprint, and its foreign parent; take part in the EIA and object; gather harm evidence and independent science, safely; get a lawyer and international allies; build a trusted, nonviolent core.

In the thick of it (months–years): bring the fundamental-rights case; pursue the foreign-parent suit abroad; involve the Human Rights Commission; carry it to the world — always protecting your people.

The long haul (years): carry the cases through the domestic and foreign courts; keep the movement and the international attention alive; hold the line for a harm declared unlawful, a foreign judgment or settlement, delay, and exposure — and, above all, keep your people safe.

FINAL ASSESSMENT

Stopping a destructive project in Nigeria can be done — the Ogoni, through disciplined nonviolence, made a global oil giant leave their land, and changed the world's conversation about corporate accountability. Hold both truths, and never forget the cost: the same struggle saw its leaders executed. Nigeria's tools are real: an EIA with participation; a domesticated Charter right the courts have used to declare gas flaring unlawful; the National Human Rights Commission; and — uniquely powerful — the ability now to sue multinational parents in London and The Hague. And the constraints are grave: weak domestic enforcement, a captured oil sector, a state and companies that close ranks, and genuine, sometimes lethal, danger to those who

resist.

Here's the discipline that wins, and it begins and ends with safety. Find the contamination and the flaring, and the foreign parent, and gather proof — carefully, without exposing anyone. Take part in the EIA. Build the fundamental-rights case on the harm, and pursue the foreign-parent suit abroad. Carry it to the world, involve the Human Rights Commission, and organise with disciplined nonviolence and a written charter of demands. Protect your people above every other consideration. Count a harm declared unlawful, a foreign judgment or settlement, delay, and global exposure as wins alongside a clean stop. That is what Ogoni did — the nonviolence, the moral clarity, and the world's witness together — and its cost is the reason safety comes first. So can you — safely, and never forgetting the price.